

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3239

By: Hasenbeck

COMMITTEE SUBSTITUTE

An Act relating to professions and occupations;
amending 59 O.S. 2021, Section 698.2, which relates
to veterinary profession definitions; modifying
certain definitions; providing for new definitions;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 698.2, is
amended to read as follows:

Section 698.2. As used in the Oklahoma Veterinary Practice
Act:

1. "Board" means the State Board of Veterinary Medical
Examiners;

2. "Animal" means any animal other than humans and includes,
but is not limited to, fowl, fish, birds and reptiles, wild or
domestic, living or dead;

1 3. "Veterinarian" means a person who has received a degree in
2 veterinary medicine or its equivalent from a school of veterinary
3 medicine;

4 4. "Licensed veterinarian" means any veterinarian who holds an
5 active license to practice veterinary medicine in this state;

6 5. "School of veterinary medicine" means any veterinary college
7 or division of a university or college that offers the degree of
8 doctor of veterinary medicine or its equivalent, which conforms to
9 the standards required for accreditation by the American Veterinary
10 Medical Association (AVMA) and which is recognized and approved by
11 the Board;

12 6. "Veterinary technician" means a person who has graduated
13 from a program accredited by the American Veterinary Medical
14 Association, or its equivalent which is recognized and approved by
15 the Board, and who has passed the examination requirements set forth
16 by the Board, and is certified to practice under the direct
17 supervision of a licensed veterinarian. For the purpose of the
18 Oklahoma Veterinary Practice Act, "registered veterinary technician
19 (RVT)" will be used interchangeably with veterinary technician who
20 is certified pursuant to Sections 698.21 through 698.26 of this
21 title;

22 7. "Veterinary technologist" means a person who has
23 successfully graduated from an AVMA-accredited bachelor degree
24 program of veterinary technology, or its AVMA equivalent;

1 8. "Veterinary assistant" means an individual who may perform
2 the duties of a veterinary technician or veterinary technologist;
3 however, has not graduated from an AVMA-accredited technology
4 program or its equivalent, and has not been certified by the Board;

5 9. "Veterinary technology" means the science and art of
6 providing all aspects of professional medical care, services and
7 treatment for animals with the exception of diagnosis, prognosis,
8 surgery and prescription of any treatments, drugs, medications or
9 appliances, where a valid veterinarian-client-patient relationship
10 exists;

11 10. "Direct supervision" means:

- 12 a. directions have been given to a veterinary technician,
13 nurse, laboratory technician, intern, veterinary
14 assistant or other employee for medical care following
15 the examination of an animal by the licensed
16 veterinarian responsible for the professional care of
17 the animal, or
18 b. that, under certain circumstances following the
19 examination of an animal by a licensed veterinarian
20 responsible for the professional care of the animal,
21 the presence of the licensed veterinarian on the
22 premises in an animal hospital setting or in the same
23 general area in a range setting is required after
24 directions have been given to a veterinarian who has a

1 certificate issued pursuant to Section 698.8 of this
2 title;

3 11. "License" means authorization to practice veterinary
4 medicine granted by the Board to an individual found by the Board to
5 meet certain requirements pursuant to the Oklahoma Veterinary
6 Practice Act or any other applicable statutes;

7 12. "Supervised Doctor of Veterinary Medicine Certificate"
8 means authorization to practice veterinary medicine with certain
9 limitations or restrictions on that practice, set by the Board or
10 authorization to perform certain enumerated functions peripheral to
11 the practice of veterinary medicine as set by the Board and has a
12 certificate issued pursuant to Section 698.8 of this title;

13 13. "Veterinarian-client-patient relationship" means when:

- 14 a. the licensed veterinarian has assumed the
15 responsibility for making medical judgments regarding
16 the health of an animal or animals and the need for
17 medical treatment, and the client, owner or other
18 caretaker has agreed to follow the instructions of the
19 licensed veterinarian, and
20 b. there is sufficient knowledge of the animal or animals
21 by the licensed veterinarian to initiate at least a
22 general or preliminary diagnosis of the medical
23 condition of the animal or animals in that:

(1) the licensed veterinarian has recently seen or is personally acquainted with the keeping and care of the animal or animals, or

(2) the licensed veterinarian has made medically necessary and timely visits to the premises where the animal or groups of animals are kept or both maintained and created a herd health plan with the client within the last twelve (12) months, and

c. the licensed veterinarian is readily available for follow-up in case of adverse reactions or failure of the regimen of therapy, or has arranged for emergency medical coverage, and

d. the licensed veterinarian's actions would conform to applicable federal law and regulations;

14. "Veterinary premises" means any facility where the practice of veterinary medicine occurs including, but not limited to, a mobile unit, mobile clinic, outpatient clinic, satellite clinic, public service outreach of a veterinary facility or veterinary hospital or clinic. The term "veterinary premises" shall not include the premises of a client of a licensed veterinarian or research facility;

15. "Veterinary prescription drugs" means such prescription items as are in the possession of a person regularly and lawfully

1 engaged in the manufacture, transportation, storage or wholesale or
2 retail distribution of veterinary drugs and the federal Food and
3 Drug Administration-approved human drugs for animals which because
4 of their toxicity or other potential for harmful effects, or method
5 of use, or the collateral measures necessary for use, are labeled by
6 the manufacturer or distributor in compliance with federal law and
7 regulations to be sold only to or on the prescription order or under
8 the supervision of a licensed veterinarian for use in the course of
9 professional practice. Veterinary prescription drugs shall not
10 include over-the-counter products for which adequate directions for
11 lay use can be written;

12 16. "ECFVG certificate" means a certificate issued by the
13 American Veterinary Medical Association Education Commission for
14 Foreign Veterinary Graduates, indicating that the holder has
15 demonstrated knowledge and skill equivalent to that possessed by a
16 graduate of an accredited or approved college of veterinary
17 medicine;

18 17. "Executive Director" means the Executive Director of the
19 State Board of Veterinary Medical Examiners or the authorized
20 representative of such official;

21 18. "Telemedicine" or "telehealth" means the practice of
22 veterinary medicine including diagnosis, consultation, evaluation,
23 treatment, transfer of medical data or exchange of information by
24 means of a two-way, real-time interactive communication between a

1 client or patient and a veterinarian with access to and reviewing
2 the patient's relevant information prior to the telemedicine visit.
3 Telemedicine or telehealth shall not include consultations provided
4 by telephone audio-only communication. A veterinarian using
5 telehealth technologies shall take appropriate steps to establish
6 the veterinarian-client-patient relationship by an in-person
7 examination within the last twelve (12) months and conduct all
8 appropriate evaluations and history of the patient consistent with
9 traditional standards of care for the particular patient
10 presentation. A veterinarian shall be licensed, or under the
11 jurisdiction of, the veterinary board of the jurisdiction where the
12 patient is located. The practice of medicine occurs where the
13 patient is located at the time telehealth technologies are used and
14 the relationship may not be established solely by telephone or
15 electronic means;

16 19. "Person" means any individual, firm, partnership,
17 association, joint venture, cooperative, corporation or any other
18 group or combination acting in concert, and whether or not acting as
19 a principal, trustee, fiduciary, receiver or as any other kind of
20 legal or personal representative, or as the successor in interest,
21 assignee, agent, factor, servant, employee, director, officer,
22 fictitious name certificate or any other representative of such
23 person;

1 20. "Food animal" means any mammalian, poultry, fowl, fish or
2 other animal that is raised primarily for human food consumption;

3 21. "Surgery" means the branch of veterinary science conducted
4 under elective or emergency circumstances, which treats diseases,
5 injuries and deformities by manual or operative methods including,
6 but not limited to, cosmetic, reconstructive, ophthalmic,
7 orthopedic, vascular, thoracic and obstetric procedures. The
8 provisions in Section 698.12 of this title shall not be construed as
9 surgery;

10 22. "Abandonment" means to forsake entirely or to neglect or
11 refuse to provide or perform the legal obligations for care and
12 support of an animal by its owner, or the owner's agent.
13 Abandonment shall constitute the relinquishment of all rights and
14 claims by the owner to an animal;

15 23. "Animal chiropractic diagnosis and treatment" means
16 treatment that includes vertebral subluxation complex (VSC) and
17 spinal manipulation of nonhuman vertebrates. The term "animal
18 chiropractic diagnosis and treatment" shall not be construed to
19 allow the:

- 20 a. use of x-rays,
 - 21 b. performing of surgery,
 - 22 c. dispensing or administering of medications, or
 - 23 d. performance of traditional veterinary care;
- 24

1 24. "Animal euthanasia technician" means an employee of a law
2 enforcement agency, an animal control agency or animal shelter that
3 is recognized and approved by the Board, who is certified by the
4 Board and trained to administer sodium pentobarbital to euthanize
5 injured, sick, homeless or unwanted domestic pets and other animals;

6 25. "Teeth floating", as provided by a nonveterinary equine
7 dental care provider, means the removal of enamel points and the
8 smoothing, contouring and leveling of dental arcades and incisors of
9 equine and other farm animals. It shall not include dental
10 procedures on canines and felines;

11 26. "Nonveterinary reproductive services" means nonveterinary
12 services provided by an individual certified by the Board as a
13 nonveterinary reproductive services technician, and involves and
14 shall be limited to nonsurgical embryo transfer in ruminating
15 animals including cattle, sheep, goats, farmed deer and other
16 ruminating exotic animals such as those found in zoos, and may
17 include basic ultrasonography of their ovaries to evaluate the
18 response to embryo-transfer-associated procedures and of the uterus
19 to determine pregnancy by the detection of a heartbeat within the
20 transferred embryo at or greater than twenty-eight (28) days of
21 gestation of such ruminating animals;

22 27. "Embryo transfer" means the biosecure process of inducing
23 increased ovulations within a donor female for the in vivo
24 production of embryos, the flushing of those embryos, collecting,

1 grading and transferring of those embryos to recipient females or
2 the cryopreservation of those embryos for storage and later transfer
3 to recipient females;

4 28. "Animal Technology Advisory Committee" means the advisory
5 committee established by the Board pursuant to Section 698.30b of
6 this title to advise and make recommendations to the Board regarding
7 any new and evolving technology, procedure, method or practice that
8 may be considered or otherwise designated as an act of animal
9 husbandry that should be included as an act not prohibited in
10 paragraph 1 of Section 698.12 of the Oklahoma Veterinary Practice
11 Act. Reference to the advisory committee in this act shall mean the
12 Animal Technology Advisory Committee;

13 29. "Examination Committee" means the committee established and
14 described in subsection D of Section 698.30a of this title related
15 to nonveterinary reproductive services; ~~and~~

16 30. "Probable Cause Committee" means the committee consisting
17 of the Board's secretary or treasurer, investigator and attorney to
18 negotiate and settle disputes in accordance with the Oklahoma
19 Veterinary Practice Act;

20 31. "Medical records" means any form of documentation that
21 provides a current and accurate account of a patient or herd history
22 and relevant medical information. Each licensed veterinarian
23 engaged in the practice shall maintain a complete, legible, written
24 or computer-generated record concerning the patient and/or herd;

1 32. "Relief veterinarian" means a licensed veterinarian who
2 works on a temporary or contract basis, who performs the duties of a
3 full-time veterinarian. He or she is required to maintain accurate
4 medical records that allow another veterinarian to proceed with care
5 and treatment and promote continuity of care for the animal; and

6 33. "Herd health plan" means a documented plan provided by a
7 licensed veterinarian with a veterinarian-client-patient
8 relationship that establishes the treatment and supportive care for
9 a group of animals to enhance a good herd management and optimize
10 animal health and productivity.

11 SECTION 2. This act shall become effective November 1, 2026.

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